

The Court finds that the rate charged by counsel for the City in this action is well within the range typically charged in the community for similar work. (See Declaration of Amanda A. Pope at ¶ 27 (Pope Decl.).) The Court also finds that the acts undertaken by counsel, for which the City seeks an award of attorneys' fees, were reasonably necessary to the prosecution of the action, and further finds that the amount of time spent on such acts were reasonable. (See *id.* at ¶ 33, and Exhs. A, D, and E.) However, the Court does not award attorneys' fees for anticipated future costs. (See *id.* at ¶ 33.)

The Court also finds that the amounts and types of costs set forth in the Memorandum of Costs appear reasonable on their face. (See *Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267; *Perko's Enterprises, Inc. v. RRNS Enterprises* (1992) 4 Cal.App.4th 238, 243.)

Finally, "The city shall be entitled to recover its costs related to enforcing any code violation. . . . The city is authorized to impose, on each responsible person, a fee to cover enforcement costs, in addition to any applicable fines or penalties." (City of Napa Municipal Code at § 1.16.050, subd. (A) (Napa Muni. Code).) "The amount of any fees to cover enforcement costs . . . may be established by documentation of the actual enforcement costs incurred by the city." (*Id.* at subd. (C).)

The Court finds that the City has produced evidence sufficient to support its request for enforcement costs in the amount of \$2,448.72. (See Pope Decl. at ¶ 33, Exh. D.)

Mr. Silver appears to concede all of the foregoing by failing to file anything by way of opposition to the instant Motion.

Based on the foregoing, the Motion is GRANTED IN PART. The City is awarded attorneys' fees in the amount of \$14,415, costs of suit in the amount of \$1,926.36 and costs of enforcement in the amount of \$2,448.72 for a total of \$18,790.08.

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Alexander Rowland et al v. Newco Capital Group LLC et al

25CV002471

DEMURRER OF DEFENDANTS NEWCO CAPITAL GROUP LLC AND NEWCO CAPITAL GROUP VI LLC TO COMPLAINT

TENTATIVE RULING: The matter is CONTINUED to September 24, 2026 at 8:30 a.m. in Dept. B.

Defendants failed to include in the notice of the Demurrer proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to (1) prepare an Amended Notice which contains the continued hearing date, as well as notice of the Court's tentative ruling system as required by Local Rule 2.9, (2) provide timely service of the Amended Notice to all other parties, and (3) file a proof of service of the Amended Notice pursuant to Rules of Court, rule 3.1300, subd. (c).